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Trump administration - sues to overturn - two California - gun control laws

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The Trump administration challenged two key California gun control statutes in a federal lawsuit filed Wednesday, the latest in a series of actions by a new team focused solely on alleged violations of the Second Amendment right to keep and bear arms.

The lawsuit targets legislation that took effect Wednesday and bans the sale of pistols that can easily be converted to fully automatic weapons, or machine guns. The law is referred to by opponents as a "Glock ban" because it affects models made by Glock Inc.

The federal action also seeks to invalidate the state's list of guns deemed unsafe, established in 2001 to limit the proliferation of "Saturday Night Specials" that could misfire or discharge accidentally.

"The Civil Rights Division will defend law-abiding citizens from states that seek to disarm them illegally," Assistant Attorney General Harmeet K. Dhillon, a longtime California conservative activist tapped by Trump to run the Justice Department's Civil Rights Division, said about the actions filed Wednesday.

The California lawsuit is one of six legal actions taken so far by the new Second Amendment Section of the U.S. Department of Justice's Civil Rights Division, which Dhillon established in December to challenge state actions aimed at limiting the rights of gun owners. In addition to the lawsuit filed against California, the Second Amendment Section also filed a lawsuit Wednesday against Virginia, challenging a new law limiting the sale of firearms the state defines as assault weapons.

Under Dhillon's direction, the division has taken on numerous administration policy priorities, challenging laws and policies in California and throughout the country on such topics as consideration of race in college admissions, in-state tuition for undocumented students, transgender rights and, now, gun control.

The lawsuit against California "is yet another example of this Justice Department enforcing the Second Amendment by protecting citizens against unconstitutional state regulation of firearms," she said in a news release.

Welcomed by firearms advocates

California has spent millions filing its own lawsuits against the administration's policy initiatives, and on Wednesday Attorney General Rob Bonta's office promised to fight the challenge to the state's gun control laws.

"Our office is committed to defending California's effective and constitutional gun safety laws, including laws that protect the public from the proliferation of machine guns and from unsafe handguns that have not passed consumer safety and testing requirements," Bonta's press team said in a statement to The Bee.

But the administration's lawsuits and its recruitment of a legal team steeped in Second Amendment issues were welcomed by gun rights advocates.

"It's long overdue for the federal government to be standing up for the Second Amendment - and standing up to states that have been ignoring the Second Amendment with impunity for decades," said Chuck Michel, president of the California Rifle and Pistol Association and a longtime gun rights advocate.

The so-called Glock ban forbids the sale of certain firearms simply because they are capable of being converted into

machine guns - not because anyone has done so, Michel said. The state's Roster of Certified Handguns, or safe handgun roster, has been poorly updated over the years and excludes many of the newest and safest firearm models, he said.

What does the lawsuit say?

The federal complaint was prompted by last year's passage of a law banning "converter pistols," which are firearms capable of being changed into automatic weapons. It was authored by Assemblymember Jesse Gabriel, D-Los Angeles, and signed by Gov. Gavin Newsom in October.

In the complaint, the administration says the statute is unconstitutional and overbroad, targeting a wide variety of popular models. The state's roster of safe handguns is also unconstitutional, in part because it prevents individuals from purchasing many models due to ever-changing requirements, the complaint states.

The lawsuit also cites the U.S. Supreme Court's 2022 decision in New York State Rifle & Pistol Association Inc. v. Bruen, which struck down New York's law limiting the carrying of concealed weapons and found that people have a right to bear arms in public for self-defense.

"California's ban on the sale of the most popular handgun in America obviously violates the Second Amendment," the lawsuit says.

Glock pistols, the federal government says, are "paradigmatic."

Bonta defended the state's gun laws in a statement released by his office.

"California's gun safety laws helped drive firearm death rates to record lows in our state and are a blueprint for reducing gun violence nationwide," the statement said.

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